PECH GROUP HOLDINGS LTD

Technology & Infrastructure Enablers for Africa

PECH GROUP HOLDINGS

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1. PARTIES & DEFINITIONS

THIS INDEPENDENT CONTRACTOR AGREEMENT (hereinafter referred to as the "Agreement") is made and entered into on the **__ day of __, 20__**

BETWEEN:

PECH Group Holdings Ltd, a company duly incorporated under the laws of the Federal Republic of Nigeria, with its registered office at _____, Lagos, Nigeria (hereinafter referred to as the **"Company"** or **"PECH"**, which expression shall where the context so admits include its successors-in-title and assigns)

AND:

Name: _____

Address: _____

Phone: _____

Email: _____

Tax Identification Number (TIN): _____

(hereinafter referred to as the **"Contractor"**, which expression shall where the context so admits include the Contractor's heirs, executors, administrators, and permitted assigns)

The Company and the Contractor are individually referred to as a **"Party"** and collectively as the **"Parties"**.

1.1 Definitions

In this Agreement, unless the context otherwise requires, the following terms shall have the meanings ascribed to them:

"Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with the Company, where "control" means ownership of more than fifty percent (50%) of the voting securities or equivalent ownership interest.

"Agreement" means this Independent Contractor Agreement, including all Schedules and annexures attached hereto, as may be amended from time to time by mutual written consent of the Parties.

"Business Day" means any day other than a Saturday, Sunday, or public holiday recognised in the Federal Republic of Nigeria.

"Confidential Information" has the meaning set forth in Section 7 of this Agreement.

"Deliverables" means all work product, reports, designs, code, documentation, materials, and other outputs to be produced by the Contractor pursuant to the Scope of Work, as described in Schedule A or any subsequent project brief agreed in writing.

"Effective Date" means the date first written above or the date on which the last Party executes this Agreement, whichever is later.

"Engagement" means the provision of Services by the Contractor to the Company under the terms of this Agreement.

"Fees" means the compensation payable to the Contractor for the satisfactory performance of the Services, as set out in Section 4 of this Agreement.

"FIRS" means the Federal Inland Revenue Service of Nigeria.

"Intellectual Property" or **"IP"** means all patents, copyrights, trademarks, trade secrets, trade names, domain names, design rights, database rights, rights in know-how, inventions (whether patentable or not), and all other intellectual property rights of any nature, whether registered or unregistered, and all applications for and renewals or extensions of such rights, anywhere in the world.

"NDPA" means the Nigeria Data Protection Act, 2023, and all regulations, guidelines, and directives issued thereunder.

"Pre-Existing IP" means any Intellectual Property owned by or licensed to the Contractor prior to the Effective Date, or developed by the Contractor independently of and without reference to the Services.

"Project Brief" means any document issued by the Company describing the requirements, specifications, and expected outcomes for a specific project or assignment under this Agreement.

"Scope of Work" or **"SOW"** means the description of Services, Deliverables, timelines, and milestones set out in Schedule A and any subsequent SOW agreed in writing by the Parties.

"Services" means the services to be performed by the Contractor as described in the Scope of Work.

"Trade Secrets" means information that derives independent economic value from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use, and is the subject of reasonable efforts by the Company to maintain its secrecy.

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2. ENGAGEMENT & SCOPE OF WORK

2.1 Engagement

The Company hereby engages the Contractor, and the Contractor hereby accepts the engagement, to perform the Services described in the Scope of Work attached hereto as **Schedule A** and incorporated herein by reference, subject to the terms and conditions of this Agreement.

2.2 Category of Engagement

The Contractor is engaged in the capacity of (check as applicable):

- [ ] Field Agent
- [ ] UI/UX Designer
- [ ] Software Developer
- [ ] Technical Consultant
- [ ] Project-Based Contractor
- [ ] Other: _____

2.3 Scope of Work

The Contractor shall perform the Services in accordance with the Scope of Work, which shall include but not be limited to:

(a) The specific tasks, responsibilities, and activities described in Schedule A;

(b) Any additional tasks reasonably related to the Scope of Work as may be agreed in writing by the Parties from time to time;

(c) All ancillary activities reasonably necessary for the proper and complete performance of the Services.

2.4 Amendments to Scope of Work

Any material changes to the Scope of Work, including but not limited to changes in Deliverables, timelines, or milestones, shall be documented in a written amendment or new SOW signed by both Parties. No oral modification of the Scope of Work shall be binding.

2.5 Standard of Performance

The Contractor shall perform the Services:

(a) With due care, skill, and diligence, exercising the degree of professional competence expected of a qualified and experienced professional in the Contractor's field;

(b) In compliance with all applicable laws, regulations, and industry standards in the Federal Republic of Nigeria;

(c) In accordance with the Company's reasonable instructions, brand guidelines, technical specifications, and quality standards as communicated from time to time;

(d) In a timely manner, meeting all deadlines and milestones specified in the Scope of Work.

2.6 No Exclusivity

Unless expressly stated in Schedule A, this Agreement does not grant the Contractor exclusivity, and the Company reserves the right to engage other contractors or employees to perform similar or identical services. Similarly, the Contractor may engage in other work provided it does not conflict with the obligations under this Agreement or the non-competition provisions herein.

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3. TERM

3.1 Commencement

This Agreement shall commence on the Effective Date and, subject to earlier termination in accordance with Section 13, shall continue for the period specified below.

3.2 Duration (check as applicable)

- [ ] **Fixed Term:** This Agreement shall be for a fixed term of __ **months/weeks, commencing on ___ and expiring on _____** (the **"Initial Term"**).
- [ ] **Project-Based:** This Agreement shall remain in effect until the completion of the project described in Schedule A, estimated to be completed by ___, unless extended by written agreement of the Parties.

3.3 Renewal

(a) Upon expiration of the Initial Term (for fixed-term engagements), this Agreement may be renewed for additional periods of _____ months each (each a **"Renewal Term"**), subject to written agreement of both Parties at least fourteen (14) days prior to the expiration of the then-current term.

(b) Renewal shall be subject to a review of the Contractor's performance and mutual agreement on any revised terms, including Fees.

(c) Renewal of this Agreement shall not, under any circumstances, be construed as creating an employment relationship between the Parties. The Contractor's status as an independent contractor shall remain unchanged regardless of the number of renewals.

3.4 No Expectation of Continuity

The Contractor acknowledges and agrees that this Agreement does not create any expectation of continued engagement beyond the stated Term. The Company is under no obligation to renew or extend this Agreement.

4. FEES & PAYMENT

4.1 Fee Structure (check as applicable)

The Company shall pay the Contractor the following Fees for the satisfactory performance of the Services:

- [ ] **Daily Rate:** NGN __*/USD* __ per day worked
- [ ] **Monthly Retainer:** NGN __*/USD* __ per calendar month
- [ ] **Project Fee (Fixed Price):** NGN __*/USD* __ for the complete project as described in Schedule A
- [ ] **Milestone-Based:** As set out in the milestone payment schedule in Schedule A
- [ ] **Other:** _____

4.2 Invoicing

(a) The Contractor shall submit a detailed invoice to the Company upon completion of each Deliverable, milestone, or at the end of each calendar month (as applicable to the Fee structure), addressed to:

> PECH Group Holdings Ltd Attn: Finance Department Email: _____

(b) Each invoice shall include: - The Contractor's name and contact details; - The Agreement reference number; - A description of the Services performed or Deliverables completed; - The period covered by the invoice; - The amount due, with a breakdown of applicable rates or milestone fees; - The Contractor's bank account details for payment; - The Contractor's Tax Identification Number (TIN).

(c) The Company may reject any invoice that does not comply with the requirements of this Section, provided it notifies the Contractor of the reason for rejection within five (5) Business Days of receipt.

4.3 Payment Terms

(a) Subject to the Contractor's compliance with the invoicing requirements and the Company's acceptance of the relevant Deliverables, the Company shall pay the Contractor within **fifteen (15) Business Days** of receipt of a valid invoice.

(b) Payment shall be made by bank transfer to the Contractor's designated bank account:

> Bank Name: _____ **Account Name:** _____ ***Account Number:*** _____ Sort Code / Branch: _____

(c) All payments shall be made in Nigerian Naira (NGN) unless otherwise agreed in writing.

4.4 Withholding Tax

(a) In accordance with the provisions of the Companies Income Tax Act (CITA), Personal Income Tax Act (PITA), and applicable guidelines issued by the Federal Inland Revenue Service (FIRS), the Company shall deduct **Withholding Tax (WHT)** at the applicable rate from all payments made to the Contractor.

(b) The current applicable WHT rate for contracts and professional services is **ten percent (10%)** for companies and **five percent (5%)** for individuals, or such other rate as may be prescribed by law.

(c) The Company shall remit the deducted WHT to the FIRS and provide the Contractor with a WHT credit note within a reasonable time after remittance.

(d) The Contractor is solely responsible for filing all tax returns and paying all other taxes, levies, and contributions arising from the Fees received under this Agreement, including but not limited to income tax, value-added tax (VAT) where applicable, and any other statutory obligations.

4.5 No Benefits

(a) The Contractor acknowledges and agrees that the Fees represent the sole compensation for the Services and that the Contractor is **not entitled** to any of the following:

- Pension contributions under the Pension Reform Act 2014;
- National Health Insurance Authority (NHIA) coverage;
- Group life insurance;
- Paid leave (annual, sick, maternity/paternity, or otherwise);
- Housing or transport allowances;
- Bonuses, gratuity, or severance pay;
- Any other statutory or contractual employee benefits.

(b) The Contractor is solely responsible for making arrangements for pension, health insurance, life insurance, and any other personal or statutory benefits.

4.6 No Equity

The Contractor shall not be eligible for, nor entitled to, any equity, stock options, profit-sharing, or ownership interest in the Company by virtue of this Agreement.

4.7 Expenses

(a) The Contractor shall bear all costs and expenses incurred in the performance of the Services, including but not limited to travel, accommodation, communication, and subsistence costs, unless otherwise expressly agreed in writing in the Scope of Work.

(b) Where the Company has agreed in writing to reimburse specific expenses, the Contractor shall submit expense claims with supporting receipts and documentation within fourteen (14) days of incurring the expense. Reimbursement shall be subject to the Company's prior written approval and expense policy.

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5. INDEPENDENT CONTRACTOR STATUS

5.1 Relationship of the Parties

(a) The Contractor is an **independent contractor** and **not** an employee, agent, partner, or joint venturer of the Company. Nothing in this Agreement shall be construed as creating an employer-employee relationship, partnership, joint venture, or agency relationship between the Parties.

(b) This Agreement is a contract for services and shall not be governed by the provisions of the Labour Act (Cap L1, Laws of the Federation of Nigeria, 2004) or any other employment legislation that applies exclusively to employer-employee relationships.

5.2 No Employment Rights

The Contractor expressly acknowledges and agrees that:

(a) The Contractor has **no entitlement** to any rights, privileges, or benefits available to employees of the Company under Nigerian law, including but not limited to:

- Protection against unfair dismissal;
- Redundancy payments;
- Minimum wage entitlements;
- Statutory leave entitlements;
- Pension contributions by the Company;
- NHIA contributions by the Company;
- Group life insurance coverage;
- Any other statutory employment benefits;

(b) The Contractor shall not hold themselves out as an employee of the Company and shall not make any representations to third parties that would suggest an employment relationship;

(c) The Contractor shall not have authority to bind the Company, enter into contracts on behalf of the Company, or create any obligation or liability on behalf of the Company without the Company's express prior written consent;

(d) The Contractor is free to determine the manner and method of performing the Services, subject to meeting the agreed specifications, deadlines, and quality standards.

5.3 Tax Obligations

(a) The Contractor is solely responsible for:

- Registering with the relevant tax authority (FIRS or State Internal Revenue Service, as applicable);
- Obtaining and maintaining a valid Tax Identification Number (TIN);
- Filing all required tax returns;
- Paying all taxes, levies, and contributions due on the Fees and any other income arising from this Agreement;
- Compliance with all applicable tax laws and regulations in Nigeria.

(b) The Contractor shall indemnify and hold harmless the Company from and against any claims, penalties, interest, or liabilities arising from the Contractor's failure to comply with tax obligations.

5.4 No Workers' Compensation

The Contractor acknowledges that the Company shall not provide workers' compensation insurance or any other form of insurance coverage for the Contractor. The Contractor is solely responsible for obtaining any insurance coverage the Contractor deems necessary.

5.5 Tools and Equipment

(a) Unless otherwise specified in Schedule A, the Contractor shall provide all tools, equipment, software, materials, and resources necessary for the performance of the Services at the Contractor's own expense.

(b) Where the Company provides any tools, equipment, or access to systems for the Contractor's use during the Engagement:

- Such provision does not create an employment relationship;
- The Contractor shall use such tools and equipment solely for the purpose of performing the Services;
- The Contractor shall return all Company-provided tools, equipment, and materials promptly upon termination or expiration of this Agreement;
- The Contractor shall be liable for any loss of or damage to Company-provided tools and equipment caused by the Contractor's negligence or misuse.

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6. INTELLECTUAL PROPERTY ASSIGNMENT

6.1 Assignment of Intellectual Property

(a) The Contractor hereby irrevocably and unconditionally **assigns** to the Company, with full title guarantee, all right, title, and interest in and to all Intellectual Property in the Deliverables and any other works created, developed, conceived, or reduced to practice by the Contractor in connection with the performance of the Services under this Agreement, whether alone or jointly with others (collectively, the **"Work Product"**).

(b) This assignment is effective automatically upon the creation of the Work Product and shall operate as a present assignment of future rights to the fullest extent permitted by law.

(c) **Override of Default Copyright Position:** The Parties expressly acknowledge that, pursuant to the Copyright Act (Cap C28, Laws of the Federation of Nigeria, 2004), copyright in works created by an independent contractor may vest in the contractor as the author. The Contractor hereby **expressly and irrevocably waives** any such default entitlement and agrees that all copyright and related rights in the Work Product shall vest in the Company from the moment of creation, as if the Company were the original author and first owner of such works.

(d) The assignment under this Section includes but is not limited to:

- Copyright and related rights in all literary, artistic, musical, and audiovisual works;
- Rights in software, source code, object code, algorithms, databases, and technical documentation;
- Design rights, whether registered or unregistered;

- Patent rights and rights in inventions;
- Trade secrets and rights in know-how;
- All rights to apply for registration of any of the foregoing;
- All rights of action for past infringement of any of the foregoing.

6.2 Moral Rights Waiver

To the fullest extent permitted by Nigerian law, the Contractor hereby irrevocably waives all moral rights (including the right to be identified as the author of any Work Product and the right to object to derogatory treatment of any Work Product) in connection with the Work Product, whether arising under the Copyright Act or otherwise.

6.3 Pre-Existing IP

(a) The Contractor retains ownership of all Pre-Existing IP.

(b) Where any Pre-Existing IP is incorporated into the Work Product, the Contractor hereby grants to the Company a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, non-exclusive licence (with the right to sublicense) to use, reproduce, modify, distribute, display, and create derivative works from such Pre-Existing IP as part of or in connection with the Work Product.

(c) The Contractor shall identify all Pre-Existing IP to be incorporated into the Work Product in Schedule A and shall not incorporate any Pre-Existing IP without the Company's prior written consent.

6.4 Third-Party IP

(a) The Contractor warrants that the Work Product shall not infringe, misappropriate, or otherwise violate the Intellectual Property rights of any third party.

(b) The Contractor shall not incorporate any third-party Intellectual Property (including open-source software) into the Work Product without the Company's prior written approval and full disclosure of any applicable licence terms.

6.5 Further Assurances

The Contractor agrees to execute all documents, instruments, and agreements, and to take all further actions, as may be reasonably requested by the Company to perfect, register, or enforce the Company's rights in the Work Product, including but not limited to executing assignments, declarations, and applications for registration of Intellectual Property rights. The Contractor hereby irrevocably appoints the Company as the Contractor's attorney-in-fact to execute such documents on the Contractor's behalf if the Contractor fails to do so within seven (7) days of a written request.

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7. CONFIDENTIALITY

7.1 Definition of Confidential Information

"Confidential Information" means all information, whether written, oral, electronic, or in any other form, that is disclosed by or on behalf of the Company to the Contractor, or that the Contractor obtains or has access to in connection with the Services, including but not limited to:

(a) Trade Secrets, proprietary technology, algorithms, source code, technical specifications, system architectures, and product roadmaps;

(b) Business plans, strategies, financial information, pricing, customer lists, supplier information, marketing plans, and sales data;

(c) Information relating to the Company's IoT platforms, smart systems, solar energy solutions, and related technologies;

(d) Employee and contractor information, organisational charts, compensation data, and human resources policies;

(e) Information about the Company's partners, investors, clients, and business relationships;

(f) Any information designated as "confidential," "proprietary," or with similar markings;

(g) Any information that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure.

Confidential Information does not include information that: (i) is or becomes publicly available through no fault of the Contractor; (ii) was known to the Contractor prior to disclosure, as evidenced by written records; (iii) is independently developed by the Contractor without reference to the Confidential Information; or (iv) is rightfully received from a third party without restriction on disclosure.

7.2 Obligations

The Contractor agrees to:

(a) Hold all Confidential Information in strict confidence and not disclose it to any third party without the Company's prior written consent;

(b) Use the Confidential Information solely for the purpose of performing the Services under this Agreement;

(c) Take all reasonable measures, at least equivalent to those the Contractor uses to protect their own confidential information (but in no event less than reasonable care), to prevent the unauthorised disclosure, dissemination, or use of the Confidential Information;

(d) Immediately notify the Company in writing upon becoming aware of any unauthorised access to, disclosure of, or use of the Confidential Information;

(e) Not copy, reproduce, or store the Confidential Information except as strictly necessary for the performance of the Services;

(f) Upon termination or expiration of this Agreement, or upon request by the Company, promptly return or destroy (at the Company's election) all Confidential Information in the Contractor's possession, including all copies, extracts, and summaries, and certify in writing that such return or destruction has been completed.

7.3 Duration of Obligations

(a) The confidentiality obligations with respect to **Trade Secrets** shall continue **in perpetuity**, for so long as the information retains its character as a trade secret.

(b) The confidentiality obligations with respect to all **other Confidential Information** shall continue for a period of **five (5) years** from the date of disclosure or the termination of this Agreement, whichever is later.

7.4 Permitted Disclosures

The Contractor may disclose Confidential Information to the extent required by:

(a) A valid order of a court or governmental authority of competent jurisdiction; or

(b) Applicable law or regulation;

provided that the Contractor: (i) provides the Company with prompt written notice of such requirement (to the extent legally permitted); (ii) cooperates with the Company in seeking a protective order or other

appropriate remedy; and (iii) discloses only the minimum amount of Confidential Information required.

8. NON-COMPETITION

8.1 Restriction

During the term of this Agreement and for a period of **twelve (12) months** following the termination or expiration of this Agreement (the **"Restricted Period"**), the Contractor shall not, directly or indirectly, whether on their own behalf or on behalf of any other person, firm, company, or entity:

(a) Engage in, carry on, or be concerned with any business that directly competes with the business of the Company or any of its Affiliates within the Federal Republic of Nigeria;

(b) Be employed by, act as a consultant to, or provide services to any entity that is a direct competitor of the Company in the fields of IoT platforms, smart systems, solar energy solutions, or related technologies within the Federal Republic of Nigeria;

(c) Establish, invest in (other than holding less than five percent (5%) of the shares of a publicly listed company), or manage any business that directly competes with the Company's business within the Federal Republic of Nigeria.

8.2 Reasonableness

The Contractor acknowledges and agrees that:

(a) The restrictions in this Section are reasonable and necessary to protect the Company's legitimate business interests, including its Confidential Information, Trade Secrets, client relationships, and business goodwill;

(b) The Contractor has had the opportunity to seek independent legal advice regarding these restrictions;

(c) The restrictions do not impose an undue hardship on the Contractor and the Contractor has sufficient skills and experience to earn a livelihood without breaching these restrictions.

8.3 Severability of Restrictions

If any court or tribunal of competent jurisdiction determines that any restriction in this Section is unreasonable or unenforceable in whole or in part, the Parties agree that such restriction shall be modified to the minimum extent necessary to make it reasonable and enforceable, rather than being struck down entirely.

9. NON-SOLICITATION

9.1 Perpetual Non-Solicitation

The Contractor agrees that, during the term of this Agreement and **in perpetuity** following the termination or expiration of this Agreement, the Contractor shall not, directly or indirectly:

(a) Solicit, induce, encourage, or attempt to solicit, induce, or encourage any employee, contractor, officer, director, or consultant of the Company or any of its Affiliates to leave the service of the Company or to breach any agreement with the Company;

(b) Solicit, divert, or attempt to solicit or divert any client, customer, supplier, or business partner of the Company or any of its Affiliates with whom the Contractor had contact or about whom the Contractor obtained Confidential Information during the Engagement, for the purpose of providing products or services

that compete with those of the Company;

(c) Interfere with or disrupt, or attempt to interfere with or disrupt, any business relationship between the Company and any of its clients, customers, suppliers, or business partners.

9.2 Severability

(a) If any court or tribunal of competent jurisdiction determines that the perpetual duration of the non-solicitation obligations in this Section is unreasonable or unenforceable, the Parties agree that such obligations shall apply for the maximum period permitted by law, which shall in no event be less than **thirty-six (36) months** from the date of termination or expiration of this Agreement.

(b) If any provision of this Section is found to be unreasonable or unenforceable in any respect, it shall be modified to the minimum extent necessary to make it reasonable and enforceable, and the remaining provisions shall continue in full force and effect.

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10. MEDIA POLICY

10.1 Perpetual Media Restrictions

The Contractor agrees that, during the term of this Agreement and **in perpetuity** following the termination or expiration of this Agreement:

(a) The Contractor shall not give any interview, make any public statement, publish any article, post on any social media platform, create any content, or otherwise communicate to the public or to any media outlet any information concerning:

- The Company's business, operations, strategies, finances, technology, products, or services;
- The Company's employees, contractors, officers, directors, or partners;
- The Contractor's engagement with the Company or any details of the Services performed;
- Any Confidential Information or Trade Secrets of the Company;

without the prior **written approval** of the Company's authorised representative.

(b) The Contractor shall not use the Company's name, logo, trademarks, or any other branding elements in any personal or professional portfolio, website, social media profile, marketing material, or public communication without the Company's prior written consent.

(c) The Contractor shall refer all inquiries from journalists, media organisations, analysts, researchers, or any other third parties concerning the Company or the Contractor's engagement with the Company to the Company's designated communications representative.

10.2 Authorised Communications

Where the Company provides written approval for any public communication:

(a) The Contractor shall submit the proposed communication to the Company for review and approval at least five (5) Business Days before the intended date of publication or communication;

(b) The Contractor shall comply with all conditions, restrictions, and guidelines specified by the Company in its approval;

(c) The Company reserves the right to withdraw its approval at any time prior to publication, and the Contractor shall immediately cease any related communication upon receiving notice of withdrawal.

10.3 Remedies

The Contractor acknowledges that any breach of this Section may cause irreparable harm to the Company

for which monetary damages would be an inadequate remedy, and the Company shall be entitled to seek injunctive relief, specific performance, and any other equitable remedies in addition to any other remedies available at law.

11. DATA PROTECTION

11.1 Compliance with NDPA 2023

(a) The Parties acknowledge and agree that the processing of personal data in connection with this Agreement shall comply with the **Nigeria Data Protection Act, 2023 (NDPA)** and all subsidiary regulations, guidelines, and directives issued by the Nigeria Data Protection Commission (NDPC).

(b) To the extent the Contractor processes personal data on behalf of the Company in the course of performing the Services, the Contractor shall act as a **Data Processor** and the Company shall act as the **Data Controller**, as those terms are defined under the NDPA 2023.

11.2 Contractor's Obligations as Data Processor

Where the Contractor processes personal data on behalf of the Company, the Contractor shall:

(a) Process personal data only on the documented instructions of the Company, unless required to do otherwise by applicable law (in which case the Contractor shall inform the Company of that legal requirement before processing, unless such law prohibits such disclosure);

(b) Ensure that all persons authorised to process the personal data have committed to confidentiality or are under an appropriate statutory obligation of confidentiality;

(c) Implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk, including as appropriate:

- Encryption of personal data;
- The ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- The ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident;
- A process for regularly testing, assessing, and evaluating the effectiveness of technical and organisational measures;

(d) Not engage any sub-processor without the prior written consent of the Company;

(e) Assist the Company in fulfilling its obligations to respond to data subject requests to exercise their rights under the NDPA 2023;

(f) **Notify the Company without undue delay (and in any event within twenty-four (24) hours)** after becoming aware of a personal data breach;

(g) Delete or return all personal data to the Company after the end of the provision of Services relating to the processing, and delete existing copies unless applicable law requires retention;

(h) Make available to the Company all information necessary to demonstrate compliance with these obligations and allow for and contribute to audits and inspections conducted by the Company or the Company's designated auditor.

11.3 International Data Transfers

The Contractor shall not transfer personal data outside the Federal Republic of Nigeria without the prior written consent of the Company and without ensuring that adequate safeguards are in place in accordance with the NDPA 2023 and any applicable guidance from the NDPC.

11.4 Compliance with FCCPA 2019

The Contractor acknowledges and agrees to comply with the Federal Competition and Consumer Protection Act, 2019 (FCCPA), to the extent applicable to the Services, including but not limited to provisions relating to the protection of consumer data and fair data practices.

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12. PERFORMANCE & DELIVERABLES

12.1 Milestones

(a) The Contractor shall perform the Services and deliver the Deliverables in accordance with the milestones and timelines set out in Schedule A.

(b) The milestones for this Engagement are as follows (or as detailed in Schedule A):

Milestone No.	Description	Due Date	Fee (if milestone-based)
1	_____	_____	_____
2	_____	_____	_____
3	_____	_____	_____
4	_____	_____	_____
5	_____	_____	_____

12.2 Acceptance Criteria

(a) Each Deliverable shall be subject to the Company's review and acceptance. The Company shall review each Deliverable within **seven (7) Business Days** of submission (the **"Review Period"**).

(b) The Company shall, within the Review Period:

- Accept the Deliverable by providing written acceptance; or
- Reject the Deliverable by providing written notice specifying the deficiencies and the revisions required.

(c) If the Company fails to provide written acceptance or rejection within the Review Period, the Deliverable shall be deemed **not accepted**, and the Company shall provide feedback within an additional five (5) Business Days.

12.3 Revision Process

(a) Upon receipt of a rejection notice, the Contractor shall revise the Deliverable to address the deficiencies identified by the Company and resubmit within **five (5) Business Days** (or such other period as may be agreed in writing).

(b) The Contractor shall be entitled to **two (2) rounds of revisions** at no additional cost. Additional revisions beyond the second round may be subject to additional Fees, as agreed in writing by the Parties.

(c) If, after two (2) rounds of revisions, the Deliverable still does not meet the acceptance criteria, the Company may, at its sole discretion:

- Accept the Deliverable with a proportional reduction in the applicable Fee;
- Allow the Contractor one final opportunity to revise the Deliverable;
- Terminate this Agreement or the applicable SOW for cause under Section 13.

12.4 Progress Reporting

The Contractor shall provide regular progress reports to the Company at the following frequency (as applicable):

- [ ] Weekly
- [ ] Bi-weekly
- [ ] Monthly
- [ ] Upon completion of each milestone
- [ ] Other: _____

Reports shall include: a summary of work completed, work in progress, any issues or risks identified, and the Contractor's plan for the upcoming period.

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13. TERMINATION

13.1 Termination for Convenience

Either Party may terminate this Agreement at any time by giving the other Party **fourteen (14) days' prior written notice** (the **"Notice Period"**).

13.2 Termination for Cause

Either Party may terminate this Agreement immediately by giving written notice to the other Party if:

(a) The other Party commits a material breach of any term of this Agreement and (where such breach is capable of remedy) fails to remedy such breach within seven (7) days of receiving written notice specifying the breach and requiring its remedy;

(b) The other Party becomes insolvent, bankrupt, enters into liquidation or receivership, makes an assignment for the benefit of creditors, or ceases to carry on business.

13.3 Additional Grounds for Immediate Termination by the Company

The Company may terminate this Agreement immediately without notice if the Contractor:

(a) Breaches any provision of Sections 6 (Intellectual Property), 7 (Confidentiality), 8 (Non-Competition), 9 (Non-Solicitation), 10 (Media Policy), or 11 (Data Protection);

(b) Engages in fraud, dishonesty, gross misconduct, or any criminal activity;

(c) Fails to meet the acceptance criteria for any Deliverable after two (2) rounds of revisions;

(d) Fails to commence or substantially progress the Services within seven (7) days of the Effective Date or any agreed start date;

(e) Is found to have made any material misrepresentation or provided false information in connection with this Agreement.

13.4 Effect of Termination

Upon termination or expiration of this Agreement:

(a) The Contractor shall immediately cease all work on the Services;

(b) The Contractor shall deliver to the Company all completed and partially completed Deliverables, Work Product, documents, materials, and property of the Company in the Contractor's possession or control;

(c) The Contractor shall return or destroy (at the Company's election) all Confidential Information and certify such return or destruction in writing;

(d) The Company shall pay the Contractor for all Services satisfactorily performed and Deliverables accepted up to the date of termination, less any amounts previously paid and any amounts owing by the Contractor to the Company;

(e) In the case of milestone-based payment, the Contractor shall be entitled to payment only for milestones that have been completed and accepted prior to the date of termination;

(f) The following Sections shall survive termination or expiration of this Agreement: Sections 5.3 (Tax Obligations), 6 (Intellectual Property), 7 (Confidentiality), 8 (Non-Competition), 9 (Non-Solicitation), 10 (Media Policy), 11 (Data Protection), 14 (Indemnification), 15 (Insurance), 16 (Dispute Resolution), and 17 (General Provisions).

13.5 No Severance or Termination Payments

The Contractor acknowledges and agrees that, upon termination or expiration of this Agreement, the Contractor shall not be entitled to any severance pay, redundancy payment, terminal benefits, or any other compensation beyond payment for Services satisfactorily performed and accepted.

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14. INDEMNIFICATION

14.1 Contractor's Indemnification

The Contractor shall indemnify, defend, and hold harmless the Company and its Affiliates, and their respective officers, directors, employees, agents, and representatives (collectively, the **"Indemnified Parties"**) from and against any and all claims, demands, losses, damages, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

(a) **Tax Claims:** Any claim by any tax authority (including FIRS, state tax authorities, or any other governmental body) that the Contractor should be classified as an employee of the Company, or that the Company is liable for any taxes, social contributions, penalties, or interest in relation to the Contractor's engagement;

(b) **Intellectual Property Infringement:** Any claim that the Work Product or any Deliverable infringes, misappropriates, or otherwise violates the Intellectual Property rights of any third party;

(c) **Breach of Agreement:** Any breach by the Contractor of any warranty, representation, obligation, or covenant under this Agreement;

(d) **Negligence or Misconduct:** Any act or omission of the Contractor (including negligence, wilful misconduct, or fraud) in the performance of the Services;

(e) **Third-Party Claims:** Any claim by any third party arising from the Contractor's acts or omissions in the course of performing the Services;

(f) **Employment Claims:** Any claim by the Contractor or any person engaged by the Contractor for employment benefits, statutory entitlements, or compensation that the Company is alleged to owe.

14.2 Indemnification Procedure

(a) The Indemnified Party shall promptly notify the Contractor in writing of any claim for which indemnification is sought;

(b) The Contractor shall have the right to assume the defence of any such claim, subject to the Indemnified Party's right to participate in the defence at its own expense;

(c) The Indemnified Party shall cooperate with the Contractor in the defence of such claim and provide such assistance as the Contractor may reasonably request;

(d) The Contractor shall not settle any claim without the prior written consent of the Indemnified Party, such consent not to be unreasonably withheld.

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15. INSURANCE

15.1 Contractor's Insurance Obligations

The Contractor shall, at the Contractor's own expense, obtain and maintain throughout the term of this Agreement (and for a period of twelve (12) months following termination) the following insurance coverage:

(a) **Professional Indemnity Insurance** with a minimum coverage of NGN ___ (or such other amount as may be agreed in Schedule A) per claim, covering claims arising from errors, omissions, or negligent acts in the performance of the Services;

(b) **Public Liability Insurance** (where applicable to the nature of the Services) with a minimum coverage of NGN ___ per occurrence;

(c) **Personal Accident Insurance** or equivalent coverage for the Contractor and any personnel engaged by the Contractor in the performance of the Services.

15.2 Evidence of Insurance

The Contractor shall, upon request, provide the Company with certificates of insurance or other evidence satisfactory to the Company confirming that the required insurance is in force and that the Company is named as an additional insured where applicable.

15.3 Failure to Maintain Insurance

If the Contractor fails to obtain or maintain the required insurance, the Company may (at its sole discretion):

(a) Obtain such insurance on the Contractor's behalf and deduct the premiums from any Fees due to the Contractor; or

(b) Terminate this Agreement immediately upon written notice.

16. DISPUTE RESOLUTION

16.1 Internal Resolution

The Parties agree that, in the event of any dispute, controversy, or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity, interpretation, performance, or termination (a **"Dispute"**), the Parties shall first attempt to resolve the Dispute through good-faith negotiation between the Contractor and the Company's designated representative within **fourteen (14) days** of written notice of the Dispute.

16.2 Mediation

If the Dispute is not resolved through internal negotiation within the period specified in Section 16.1, either Party may refer the Dispute to mediation. The mediation shall be:

(a) Conducted in Lagos, Nigeria;

(b) Administered by a mutually agreed mediator, or failing agreement, a mediator appointed by the Lagos Court of Arbitration (LCA);

(c) Conducted in the English language;

(d) Completed within thirty (30) days of the appointment of the mediator, unless the Parties agree to extend the period.

16.3 Arbitration

If the Dispute is not resolved through mediation within the period specified in Section 16.2, either Party may refer the Dispute to binding arbitration. The arbitration shall be:

(a) Conducted in **Lagos, Nigeria**;

(b) Administered under the rules of the **Arbitration and Mediation Act, 2023** of Nigeria and the rules of the Lagos Court of Arbitration;

(c) Conducted by a sole arbitrator mutually agreed upon by the Parties, or failing agreement within fourteen (14) days, appointed by the President of the Lagos Court of Arbitration;

(d) Conducted in the **English language**;

(e) The decision of the arbitrator shall be **final and binding** on the Parties and may be enforced in any court of competent jurisdiction.

16.4 Costs

(a) Each Party shall bear its own costs in connection with the internal negotiation and mediation stages.

(b) The costs of arbitration (including the arbitrator's fees) shall be borne by the Parties as determined by the arbitrator, or in the absence of such determination, equally by the Parties.

(c) The arbitrator may award costs (including reasonable legal fees) to the prevailing Party.

16.5 Injunctive Relief

Notwithstanding the foregoing, nothing in this Section shall prevent either Party from seeking urgent injunctive or interim relief from a court of competent jurisdiction to protect its rights under this Agreement, including but not limited to the protection of Confidential Information, Intellectual Property, and enforcement of the restrictive covenants in Sections 8, 9, and 10.

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17. GENERAL PROVISIONS

17.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **Federal Republic of Nigeria**, including but not limited to the Copyright Act (Cap C28, LFN 2004), the Nigeria Data Protection Act 2023, the Federal Competition and Consumer Protection Act 2019, the Arbitration and Mediation Act 2023, the Companies and Allied Matters Act 2020, and all applicable subsidiary legislation.

17.2 Entire Agreement

This Agreement (including all Schedules) constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, warranties, commitments, offers, contracts, and agreements of any nature, whether written or oral, relating to such subject matter.

17.3 Amendments

No amendment, modification, or variation of this Agreement shall be effective unless made in writing and signed by both Parties.

17.4 Waiver

(a) No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof.

(b) No single or partial exercise of any right, power, or remedy shall preclude any other or further exercise thereof or the exercise of any other right, power, or remedy.

(c) Any waiver must be in writing and signed by the waiving Party to be effective.

17.5 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable by any court or tribunal of competent jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other provision of this Agreement, which shall remain in full force and effect. The invalid, illegal, or unenforceable provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable while preserving the intent of the Parties.

17.6 Assignment

(a) The Contractor shall not assign, transfer, subcontract, or delegate any of the Contractor's rights or obligations under this Agreement without the prior written consent of the Company.

(b) The Company may assign or transfer its rights and obligations under this Agreement to any Affiliate or successor entity without the Contractor's consent.

17.7 Notices

All notices under this Agreement shall be in writing and shall be deemed to have been duly given when:

(a) Delivered personally;

(b) Sent by registered post or courier to the addresses specified in Section 1;

(c) Sent by email to the email addresses specified in Section 1, with confirmed receipt.

17.8 Relationship with Other Agreements

If the Contractor has signed any other agreement with the Company (including a non-disclosure agreement, non-compete agreement, or IP assignment agreement), the provisions of this Agreement shall be in addition to (and not in substitution for) such other agreements, and the more restrictive provisions shall prevail in the event of any conflict.

17.9 Force Majeure

Neither Party shall be liable for any failure or delay in the performance of its obligations under this Agreement to the extent that such failure or delay is caused by circumstances beyond the reasonable control of that Party, including but not limited to acts of God, natural disasters, war, terrorism, riots, epidemics, pandemics, government actions, power failures, or internet disruptions (**"Force Majeure**

Event"), provided that:

(a) The affected Party notifies the other Party promptly in writing of the Force Majeure Event;

(b) The affected Party uses reasonable efforts to mitigate the effects of the Force Majeure Event;

(c) If a Force Majeure Event continues for more than thirty (30) consecutive days, either Party may terminate this Agreement by giving written notice.

17.10 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed to be original signatures for all purposes.

17.11 No Third-Party Rights

Nothing in this Agreement shall confer any rights or remedies on any person other than the Parties and the Indemnified Parties specified in Section 14.

17.12 Interpretation

(a) Headings are for convenience only and shall not affect the interpretation of this Agreement;

(b) Words importing the singular include the plural and vice versa;

(c) References to Sections and Schedules are to Sections and Schedules of this Agreement;

(d) "Including" means "including without limitation."

18. SIGNATURE BLOCK

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

P E C H G R O U P H O L D I N G S L T D

THE CONTRACTOR

Full Name:	_____
Signature:	_____
Date:	_____
Address:	_____
Email:	_____
TIN:	_____

FOR AND ON BEHALF OF PECH GROUP HOLDINGS LTD

Name:	_____

Title:	_____
Signature:	_____
Date:	_____
Company Seal/Stamp:	

WITNESS

Full Name:	_____
Signature:	_____
Date:	_____
Address:	_____
Occupation:	_____

SCHEDULE A: SCOPE OF WORK

Contract Reference No.: PECH/CON//___

Contractor Name: _____

Effective Date: _____

PECH GROUP HOLDINGS LTD

A.1 Project / Engagement Title

A.2 Description of Services

A.3 Specific Deliverables

No.	Deliverable	Description	Format / Specifications	Due Date
1	___	___	___	___
2	___	___	___	___
3	___	___	___	___
4	___	___	___	___
5	___	___	___	___

A.4 Milestones & Payment Schedule

Milestone	Description	Due Date	Payment Amount	Payment Trigger
M1	_____	_____	_____	Upon acceptance
M2	_____	_____	_____	Upon acceptance
M3	_____	_____	_____	Upon acceptance
M4	_____	_____	_____	Upon acceptance
M5	_____	_____	_____	Upon acceptance
		Total:	_____	

A.5 Acceptance Criteria

The Deliverables shall be deemed acceptable if they meet the following criteria:

1. _____
2. _____
3. _____
4. _____

A.6 Tools, Equipment & Access Provided by the Company

(If none, state "None — Contractor to provide all tools and equipment")

Item	Description	Return Required
_____	_____	Yes / No
_____	_____	Yes / No
_____	_____	Yes / No

A.7 Reporting & Communication

Company Contact Person:	_____
Contact Email:	_____
Reporting Frequency:	Weekly / Bi-weekly / Monthly / Per Milestone
Communication Channel:	_____
Meeting Schedule:	_____

A.8 Location of Services

- [ ] Remote
- [ ] On-site at PECH offices, Lagos
- [ ] Hybrid (specify): _____
- [ ] Field-based (specify locations): _____

A.9 Pre-Existing IP to be Incorporated

(List any Pre-Existing IP the Contractor intends to incorporate into the Deliverables, with applicable licence terms)

Item	Description	Licence Terms
_____	_____	_____
_____	_____	_____

If none, state: **"No Pre-Existing IP will be incorporated into the Deliverables."**

A.10 Special Terms and Conditions

AGREED AND SIGNED:

Contractor Signature:	_____
Date:	_____

PECH Authorised Signatory:	_____
Date:	_____

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